

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201809371	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/24/2018 7:00 AM	Location of Incident: § 87(2)(b)	Precinct: 121	18 Mo. SOL 4/24/2020	EO SOL 12/9/2020	
Date/Time CV Reported Thu, 11/08/2018 4:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/08/2018 4:16 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Genaro Barreiro	308	950050	WARRSEC
2. An officer			WARRSEC
3. Officers			WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: On October 24, 2018, officers entered § 87(2)(b) in Staten Island.	
B. Officers	Abuse: On October 24, 2018, officers searched § 87(2)(b) in Staten Island.	
C.DT3 Genaro Barreiro	Abuse: On November 7, 2018, Detective Genaro Barreiro entered § 87(2)(b) in Staten Island.	
D.DT3 Genaro Barreiro	Abuse: On November 7, 2018, Detective Genaro Barreiro searched § 87(2)(b) in Staten Island.	
E. Officers	Abuse: On November 7, 2018, officers entered § 87(2)(b) in Staten Island.	
F. Officers	Abuse: On November 7, 2018, officers searched § 87(2)(b) in Staten Island.	
G. An officer	Force: On November 7, 2018, an officer used physical force against § 87(2)(b)	
H. An officer	Force: On November 7, 2018, an officer used physical force against an individual.	

Case Summary

On November 8, 2018, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of herself, her husband, § 87(2)(b) and her unidentified neighbor. § 87(2)(b) provided the same mailing address and telephone number for herself and § 87(2)(b) also provided her email address. § 87(2)(b) did not provide the name of her neighbor or any contact information for her neighbor.

On November 13, 2018 and November 16, 2018, calls were placed to the number § 87(2)(b) provided for her and § 87(2)(b). Each time, a voicemail was left requesting a call back.

On November 16, 2018, § 87(2)(b) returned the aforementioned call and scheduled a sworn statement for November 20, 2018. On November 19, 2018, a text message reminder was sent to § 87(2)(b) regarding her appointment.

On November 20, 2018, § 87(2)(b) contacted the investigation and said she could not make her appointment because her daughter was ill. § 87(2)(b) rescheduled her appointment for November 28, 2018. On the same day, § 87(2)(b) contacted the investigation to say that her son had been arrested. § 87(2)(b) was informed that all aspects of her complaint would be addressed when she appeared for her sworn statement.

On November 27, 2018, a text message reminder was sent to § 87(2)(b) regarding her appointment. On November 28, 2018, § 87(2)(b) did not appear for her appointment.

Between December 3, 2018 and December 12, 2018, three calls were placed to § 87(2)(b) at the number she provided with her complaint. Each time, a voicemail was left requesting a call back. On December 12, 2018, a missed call was received from § 87(2)(b)'s number. Upon returning her call, § 87(2)(b) did not answer and a voicemail was left explaining that the investigation was returning her call.

On December 17, 2018 and January 3, 2019, a sixth and seventh call was placed to § 87(2)(b). Each time, a voicemail was left requesting a call back. To date, none of the aforementioned calls have been returned.

On November 15, 2018, a search of the BADS, NYS DMV, and LexisNexis databases was performed. The BADS search returned negative results. The NYS DMV search returned an additional address and the LexisNexis search returned three telephone numbers.

Between November 16, 2018 and December 12, 2018, three calls were placed to the first number listed in the LexisNexis search. Each time, the line rang continuously without an answer or opportunity to leave a voicemail.

Between November 16, 2018 and December 6, 2018, two calls were placed to the second number listed in the LexisNexis search. Each time, the number was not in service. On November 6, 2018, a call was placed to the third number in the LexisNexis search. The number was not in service.

On December 13, 2018, a search of the CLEAR database was performed, which returned three possible telephone numbers. On December 13, 2018 and December 17, 2018, calls were placed to the first number listed in the CLEAR search. Each time, an automated message stated that the number was restricted or unavailable. On December 13, 2018 and December 17, 2018, calls were placed to the second number listed in the CLEAR search. Each time, a voicemail was left requesting a call back. On December 27, 2018, a third call was placed to this number and the number was no longer in service.

On December 14, 2018, a call was placed to the third number listed in the CLEAR search. § 87(2)(b)'s mother answered and said she would have § 87(2)(b) contact the

investigation. On the same day, a call was received from § 87(2)(b) at a new number, but she had no knowledge of the incident, and said the investigation had the wrong § 87(2)(b)

On January 9, 2019, a search of the DOC database confirmed that § 87(2)(b) is not incarcerated.

Between November 13, 2018 and December 6, 2018, three please call letters and emails were sent to § 87(2)(b) at the mailing address and email address she provided with her complaint. None of the aforementioned letters or emails was returned as undeliverable.

On November 16, 2018, a please call letter was sent to § 87(2)(b) at the address revealed in the NYS DMV search. On December 4, 2018, this letter was returned to the CCRB.

As stated above, § 87(2)(b) provided the same telephone number for herself and ### § 87(2)(b). § 87(2)(b) never responded to any of the aforementioned contact attempts at the telephone number § 87(2)(b) provided.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On November 15, 2018, a search of the NYS DMV and LexisNexis database was performed. The NYS DMV search returned the same address for § 87(2)(b) as the one § 87(2)(b) provided. The LexisNexis search returned negative results.

On November 29, 2018, a search of the DOC database revealed that § 87(2)(b) was incarcerated at § 87(2)(b)

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On December 3, 2018, a call was placed to Staten Island Legal Aid, but there was no answer. On December 10, 2018, a second call was placed to Staten Island Legal Aid, which had no record of § 87(2)(b) or an attorney for him in its system.

On December 12, 2018 and December 17, 2018, calls were placed to § 87(2)(b) of 18B. Each time, a voicemail was left requesting a call back. On December 17, 2018, a call was placed to a second number for § 87(2)(b). § 87(2)(b) confirmed that there was no information listed for § 87(2)(b) or his attorney.

On December 18, 2018, a search of the CTS returned negative results for § 87(2)(b)

On December 19, 2018, a call was placed to § 87(2)(b) and a video teleconference with § 87(2)(b) was scheduled for January 2, 2019. On December 31, 2018, the investigation received an email that § 87(2)(b) had been released from § 87(2)(b) on December 7, 2018.

On January 2, 2019, a CLEAR search was performed, which returned an additional telephone number and mailing address for § 87(2)(b). On January 2, 2019, a call was placed to the number returned in the CLEAR search and a voicemail was left requesting a call back. On the same day, § 87(2)(b) contacted the investigation at the number listed for § 87(2)(b) in the CLEAR search. § 87(2)(b) did not know § 87(2)(b) named § 87(2)(b) and said the number is associated with his business.

On January 4, 2019, NYC DHS confirmed that § 87(2)(b) is not domiciled within its shelter system.

Between November 16, 2018 and January 2, 2019, three please call letters were sent to § 87(2)(b) at the address § 87(2)(b) provided for him. None of the letters was returned as undeliverable.

Between January 2, 2019 and January 8, 2019, two please call letters were sent to § 87(2)(b) at the address listed for him in the CLEAR search, which were not returned as undeliverable.

§ 87(2)(g)

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date